



U.S. Department  
of Transportation  
**Research and  
Special Programs  
Administration**

400 Seventh St., S.W.  
Washington, D.C. 20590

**JAN 12 2001**

DOT-E 9568  
(SECOND REVISION)

|                                    |
|------------------------------------|
| EXPIRATION DATE: December 31, 2002 |
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(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: AZTRON Chemical Services, Inc. (ACSI)  
South Houston, Texas
2. PURPOSE AND LIMITATION:
  - a. This exemption authorizes the use of an MC-306 cargo tank motor vehicle for the transportation of a Class 8 hazardous material identified in paragraph 6 below. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
  - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101, Column (7), special provision B2, in that an MC 306 cargo tank is not authorized, except as specified herein.
5. BASIS: This exemption is based on the application of Aztron Chemical Services, Inc. dated January 10, 2001, submitted in accordance with § 107.109.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

| Proper Shipping Name/<br>Hazardous Materials Description | Hazard<br>Class/<br>Division | Identi-<br>fication<br>Number | Packing<br>Group |
|----------------------------------------------------------|------------------------------|-------------------------------|------------------|
| Sodium hydroxide solution                                | 8                            | UN1824                        | II               |

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a three compartmented DOT Specification MC-306 cargo tank made of 12 gauge 316 stainless steel.

b. TESTING - The cargo tank must be reinspected and retested once every two years in accordance with § 180.407(g)(1)(iv) as prescribed for DOT Specification MC-306 cargo tanks. Pneumatic retesting at one or one-half times the design pressure is authorized in place of the required hydrostatic test.

c. MARKING - Each cargo tank must be plainly marked on the right side near the front, in letters at least two inches high on contrasting background, "DOT-E 9568".

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by § 172.700 through § 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



*for* Robert A. McGuire  
Associate Administrator for  
Hazardous Materials Safety

JAN 12 2001

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.  
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

PO: AM